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Yanira Cruz v. Michelle Aguilera, et al.

MOTION FOR RELIEF FROM WAIVER OF DISCOVERY OBJECTIONS

MOVING PARTY: Defendants University Credit Union and Michelle Aguilera

RESPONDING PARTY(S): Plaintiff Yanira Cruz

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an employment action. Plaintiff Yanira Cruz (Plaintiff) alleges she suffered discrimination and retaliation because of her disabilities during her employment with defendants University Credit Union and Michelle Aguilera, (collectively, Defendants.)

Defendants now move for relief from a waiver of discovery objections arising from late responses to Plaintiff's First Sets of Request for Inspection, Production of Documents, Form Interrogatories and Special Interrogatories (collectively, the Requests). Plaintiff opposed.

TENTATIVE RULING:

Defendants' Motion for Relief from Waiver of Discovery Objections is GRANTED.

Defendants are ordered to give notice, unless waived.

DISCUSSION:

Motion for Relief from Waiver of Discovery Objections

I. Legal Standard

The trial court has broad discretion to grant relief from waiver of objections on a noticed motion upon determining that: (a) the moving party subsequently served discovery responses that are substantially code compliant; and (b) the moving party's failure to timely serve responses "was the result of mistake, inadvertence, or excusable neglect." (Code Civ. Proc., §§ 2030.290 (a), 2031.300 (a), and 2033.280 (a).)

II. Analysis

A. Background

On March 31 and April 1, 2026, Requests were served on Defendants' counsel. Attorney Chang, the handling attorney at the time, did not calendar the due dates for these discovery requests before her last day at the firm on May 15, 2026. (Chang Decl. ¶¶2, 4.)

It wasn't until May 18, 2026, that new counsel spoke with Plaintiff's counsel regarding responses to these requests. (Smith Decl. ¶10.) At the end of the meeting, the parties agreed to an extension to June 5, 2026, to serve responses. (Ibid.) The parties granted each other various extensions until discovery responses were eventually produced on August 7, 2026. (Yu Decl. ¶¶7-10.) During this time, it appears there were several productive meetings through this period accomplishing meaningful goals such as reasonably limiting the scope of discovery and extending professional courtesies. To their credit, it appears that much was accomplished in this time.

However, after Defendants provided responses on August 7, Plaintiff informed Defendants that they expected objection free responses. (Smith Decl. ¶10.) Plaintiff took the position that discovery objections were waived by Defendants for their failure to provide timely responses to discovery before the May 18, 2026, meet and confer and that Plaintiff would not relieve counsel of waiver. (Smith Decl. ¶13.) This motion followed.

B. Defendants Served Substantially Code Compliant Responses

Here, Defendants served substantially code compliant responses. "Defendant's responses consist primarily of substantive details and facts and a limited number of objections concerning privacy and privilege. Defendant also produced 1,229 responsive documents." (Mot. at p. 5:20-22.) The Declaration of Justin M. Kirk, which contains Defendants' responses, highlights the substantive responses within. (Kirk Decl. ¶10, Ex 5-7.)

In opposition, Plaintiff challenges the use of certain objections and argues that responses should have been provided without objection. However, Defendants were allowed to respond with objections only as to attorney-client or attorney work product privileges, per the agreement of the parties. Any and all other types of objections were, in fact, waived. [FN 1] (See, Kirk Decl. ¶5, Ex. 3)

C. Defendants Demonstrated Excusable Neglect

Here, defense counsel's neglect is excusable. The test of whether neglect was excusable is whether "'a reasonably prudent person under the same or similar circumstances' might have made the same error. [Citations.]" (Bettencourt v. Los Rios Community College Dist. (1986) 42 Cal.3d 270, 276.) Calendaring errors by office staff and attorneys have routinely been found to constitute excusable neglect. (See, e.g., Hu v. Fang (2002) 104 Cal.App.4th 61, 64-65.) Once the scheduling error was discovered, Defendants counsel immediately informed Plaintiff's counsel of the mistake and the parties worked together on a resolution. These actions demonstrate excusable neglect.

In opposition, Plaintiff highlights the fact that “Defendants filed this motion on August 21, 2026—ninety-nine days after May 14, 2026.” (Opp. at p. 17:24.) However, the Court recognizes the extensions given by the parties and the successful meet and confer efforts in those ninety-nine days. It would be blatantly unfair to use Defendants’ attempts at informal resolution of discovery issues without Court intervention to their disadvantage. (See *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1434 [It “is a central precept to the Civil Discovery Act . . . that civil discovery be essentially self-executing.”]) Plaintiff’s remaining arguments have been considered and do not influence the analysis for relief.

In the end, Defendants’ counsel failed to properly calendar the Requests. Once discovered, both parties made meaningful strides in resolving their discovery disputes which culminated in Defendants’ responses filed on August 7, 2026. While untimely, those responses substantially complied with applicable discovery codes in all other respects. From the totality of the circumstances, including the evidence from both parties, nothing demonstrates any inexcusable neglect or other actions that would warrant denial of relief. This ruling does not disturb any agreements reached between the parties regarding discovery. Instead, it relieves Defendants of its waiver of discovery objections to the Requests arising from the late response.

Accordingly, Defendants’ Motion for Relief from Waiver of Discovery Objections is GRANTED.

IT IS SO ORDERED.

Dated: September 21, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - The agreement of counsel was that if the Defendants did, in fact, assert any of those privileges, the mandatory log still had to be provided.

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept509@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.